

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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THEODORE MERCHANT,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
KRISTOPHER MARTIN (Shield # 2342) and POLICE
OFFICERS JOHN and JANE DOES #'s 1-8 (Names and
Numbers are unknown at present) and Other Unidentified
Members of the New York City Police Department,

Defendants.
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SUMMONS

Index #

Basis of Venue:
Place of Incident

Plaintiff Designates
Kings County
as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 26, 2020

Respectfully submitted,

Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

POLICE OFFICER KRISTOPHER MARTIN (Shield # 2342), Detective, 291st Command, 71st
Precinct, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
THEODORE MERCHANT,
Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER
KRISTOPHER MARTIN (Shield # 2342) and POLICE
OFFICERS JOHN and JANE DOES #'s 1-8 (Names and
Numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.

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Plaintiff **Theodore Merchant**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution and denial of a fair trial of the plaintiff.

PARTIES

2. Theodore Merchant is a citizen of the United States and a resident of New York.
3. POLICE OFFICER KRISTOPHER MARTIN (Shield # 2342) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER KRISTOPHER MARTIN (Shield # 2342) is being sued in his/her individual capacity and official capacity.
5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John and Jane Doe #'s 2-8 are and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe #2-8 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
13. The City of New York held a 50(h) hearing examination of the Plaintiff on June 13, 2019.

STATEMENT OF FACTS

14. On July 2, 2018 at approximately 5:00 a.m., at 270 Clarkson Avenue in Brooklyn, New York, Mr. Merchant was at home when police officers unlawfully entered. He was arrested for possession of stolen property, robbery, assault, petit larceny, possession of a weapon, menacing, and harassment for an incident that occurred on June 15, 2018.
15. Mr. Merchant denies the charges. The police claim that on June 15, 2018, Mr. Merchant robbed a 99-cent store, but that is false. He went to the store to buy a small pack of t-shirts and paid for his items using cash. On his way home, he realized they were the wrong size and went back to the store to exchange it. He informed one of the store employees that the label on the outside of the package indicated it contained size small shirts, but the t-shirts inside the package were actually sized medium. Because the store employee did not understand English and had a hard time understanding the situation, he did not allow Mr. Merchant to exchange the shirt. Mr. Merchant exchanged the shirts himself while in the back of the store, leaving the medium-sized shirts behind and taking small-sized shirts with him. The employee searched Mr. Merchant upon leaving the store and became very aggressive with him, even though Mr. Merchant had only one-pack of shirts with him, for which he had previously paid. Mr. Merchant left the store, pushing the store clerk away from him to defend himself from his aggressive action.
16. At arraignment, Mr. Merchant was released on his own recognizance.
17. Mr. Merchant was incarcerated for approximately 2.5 days. He attended approximately 4 court appearances. On account of his arrest, he missed 3 days of school and failed two courses because of the school's policy of missing more than 2 days of classes.
18. The charges were sealed and dismissed on January 25, 2019.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

19. Plaintiff repeats and alleges paragraphs 1 through 18 as if fully set forth herein.
20. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
21. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
22. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION**

23. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 22 with the same force and effect as if more fully set forth at length herein.
24. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
25. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
26. Defendants commenced and continued a criminal proceeding against plaintiff.
27. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
28. The prosecution and criminal proceedings terminated favorably to plaintiff on November 30, 2018.
29. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
30. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.
32. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION**FAILURE TO INTERVENE**

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
35. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
36. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
37. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
38. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION**NEGLIGENCE**

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.
40. Defendants owed a duty of care to plaintiff.
41. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
42. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
43. All of the foregoing occurred without any fault by plaintiff.
44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION**NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.
46. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
47. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
48. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH, EIGHTH, NINTH, TENTH CAUSES OF ACTION**42 U.S.C. § 1983 and 42 U.S.C. 1988**

Violation of First, Fourth, Fifth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (7th claim); false-arrest/unlawful-search claims (8th claim); malicious-prosecution claim (9th claim) and deprivation-of-fair-trial claim (10th claim).

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
51. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
52. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth and Fourteenth Amendment rights.
53. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false arrest, unlawful search, malicious prosecution and fabrication of evidence violated his First, Fourth, Fifth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to

deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.

54. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.
55. In the event Plaintiff prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

ELEVENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.
57. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
58. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
59. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
60. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants whose discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
61. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

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ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
May 26, 2020

_____/s/_____
Sydney O'Hagan, Esq.